acted all the bills Ravi returned.

Interestingly, most of the bills pending in Raj Bhavans are related to the education sector, particularly the appointment of vice-chancellors (VCs). Though education falls in the concurrent list, where both the Centre and states can legislate on the subjects, entry 66 of the Union list—determination of standards in institutions for higher education—gives the Centre substantial authority over higher education. Just like Tamil Nadu, the West Bengal state assembly passed a bill in June 2022 replacing the governor with CM as state university chancellor. The bill is awaiting the governor's assent. The Bengal government is engaged in a legal battle with governor C.V. Ananda Bose over the appointment of VCs in 31 state universities. Kerala, too, has an ongoing bitter feud over the issue of VC.

IT'S A MATTER OF TIME

Just as Ravi needed an SC prod, Telangana governor Soundararajan also gave her assent to three bills in April, just hours before the SC was to hear a petition filed by the state. Kerala has challenged a high court ruling of November 30 last year, which declined to fix a timeline for the governor to make up his mind stating that Article 200 falls under the discretionary powers of the governor. The top court has yet to take a decision on the timeline, but on November 10, it warned Punjab governor Purohit that he was "playing with fire".

In its writ petition in the SC, the Punjab government complained that Purohit has held back eight bills, including crucial ones on Sikh gurdwaras, the police and higher education, passed in a special sitting on June 19-20. Purohit's logic is that the Speaker adjourned the budget session sine die in March without proroguing it and hence the special sitting was "patently illegal".

In Kerala, CM Pinarayi Vijayan claims that eight bills have been pending—some for over two years—with governor Khan. Three of these were ordinances promulgated by the governor that were later converted into bills and passed by the assembly but are still awaiting Khan's nod. Khan, on the other hand, says the CM has shirked his constitutional duty to brief the governor and has not been visiting Raj Bhavan, adding that he is not a "rubber stamp".

"A bill brought by the government before a legislature has some urgency," says constitutional expert P.D.T. Achary. "If a governor, actuated by extraneous considerations, sits on it for 2-3 years, he is, in effect, violating the Constitution." Prof. Ramu Manivannan, a scholar on politics and public administration, believes the current imbroglio is leading to a situation that will warrant a constitutional amendment to the gubernatorial role. "It is high time the court places the governors in the right place in a Republic. The ruling BJP at the Centre is forcing this situation indirectly by pushing governors to act like party agents," he says.

AN OLD TUSSLE

The conflict between state governments and governors is not a recent phenomenon. If such frictions in the past were related to appointment of CMs, dismissal of government, dissolution of assembly and imposition of President's rule, the current battles revolve around determining when assemblies are convened, interference in day-to-day administration, delaying assent to bills and even making adverse comments in public.

For instance, a row broke out in October 2022 when governor Purohit withdrew his consent for a special session convened by CM Mann to table a motion of confidence. There were similar refusals to convene special assembly sessions in Kerala and Rajasthan in 2020. In Maharashtra, the erstwhile Uddhav Thackeray-led Maharashtra Vikas Aghadi regime had a face-off

NEW ROUND: GUV vs CM

THE CONFLICT

On Nov. 10, the Supreme Court said Punjab governor Banwarilal Purohit was "playing with fire" by sitting on bills passed by the legislature. Tamil Nadu governor R.N. Ravi also got flak for holding up 12 bills and creating a "constitutional deadlock". The SC is hearing pleas by Tamil Nadu, Kerala and Telangana for a time-limit on the Raj Bhavan to give assent to bills.

WHAT THE CONSTITUTION SAYS

In states, the governor's assent is needed for all bills—except money bills—passed by the legislature. Under Article 200, the governor has four options—give assent, withhold it, return the bill to the assembly for reconsideration, or reserve it for the consideration of the President (bills that may impact the state HC's powers or subjects in the concurrent list that contravene any provision of the Constitution).

Per the SC, governors can't exercise discretionary powers while withholding assent or returning a bill to the legislature and are bound by the advice of the Council of Ministers. However, no timeline is prescribed. Raj Bhavans have exploited this ambiguity to sit on bills indefinitely. On Nov. 10, the SC said governors must keep in mind the expression "as soon as possible" in Article 200.



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